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reliance interests, or judicial “humility,” Tr. of Oral Arg. 20, 41–42—they cannot overcome that fundamental flaw.

In any event, these oft-cited benefits are frequently illusory. The Court’s multifactor balancing test for invoking *stare decisis* has resulted in policy-driven, “arbitrary discretion.” The Federalist No. 78, at 471. The inquiry attempts to quantify the unquantifiable and, by frequently sweeping in subjective factors, provides a ready means of justifying whatever result five Members of the Court seek to achieve. See *Holder v. Hall*, 512 U. S. 874, 943–944 (1994) (THOMAS, J., concurring in judgment) (describing a “‘totality of circumstances’” test as “an empty incantation—a mere conjurer’s trick”); *Lawrence v. Texas*, 539 U. S. 558, 577 (2003) (acknowledging that *stare decisis* is “‘a principle of policy and not a mechanical formula’”); see also *Casey*, 505 U. S., at 854–856 (invoking the “kind of reliance that would lend a special hardship to the consequences of overruling and add inequity to the cost of repudiation”). These are not legal questions with right and wrong answers; they are policy choices. See, e. g., A. Goldberg, *Equal Justice: The Warren Era of the Supreme Court* 96 (1971) (“[T]his concept of *stare decisis* both justifies the overruling involved in the expansion of human liberties during the Warren years and counsels against the future overruling of the Warren Court libertarian decisions”).

Members of this Court have lamented the supposed “uncertainty” created when the Court overrules its precedent. See *Franchise Tax Bd. of Cal. v. Hyatt*, 587 U. S. 230, 260–261 (2019) (BREYER, J., dissenting). But see *Lawrence*, *supra*, at 577 (asserting that *not* overruling precedent would “caus[e] uncertainty”). As I see it, we would eliminate a significant amount of uncertainty and provide the very stability sought if we replaced our malleable balancing test with a clear, principled rule grounded in the meaning of the text.

The true irony of our modern *stare decisis* doctrine lies in the fact that proponents of *stare decisis* tend to invoke it

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most fervently when the precedent at issue is least defensible. See, e.g., *Holder*, *supra*, at 944–945 (opinion of THOMAS, J.) (“*Stare decisis* should not bind the Court to an interpretation of the Voting Rights Act that was based on a flawed method of statutory construction from its inception” and that has created “an irreconcilable conflict” between the Act and the Equal Protection Clause and requires “methodically carving the country into racially designated electoral districts”). It is no secret that *stare decisis* has had a “ratchet-like effect,” cementing certain grievous departures from the law into the Court’s jurisprudence. Goldberg, *supra*, at 96. Perhaps the most egregious example of this illegitimate use of *stare decisis* can be found in our “substantive due process” jurisprudence. *McDonald v. Chicago*, 561 U. S. 742, 811 (2010) (THOMAS, J., concurring in part and concurring in judgment). The Court does not seriously defend the “legal fiction” of substantive due process as consistent with the original understanding of the Due Process Clause. *Ibid.* And as I have explained before, “this fiction is a particularly dangerous one” because it “lack[s] a guiding principle to distinguish ‘fundamental’ rights that warrant protection from nonfundamental rights that do not.” *Ibid.* Unfortunately, the Court has doggedly adhered to these erroneous substantive-due-process precedents again and again, often to disastrous ends. See, e.g., *Stenberg v. Carhart*, 530 U. S. 914, 982 (2000) (THOMAS, J., dissenting) (“The standard set forth in the *Casey* plurality has no historical or doctrinal pedigree” and “is the product of its authors’ own philosophical views about abortion” with “no origins in or relationship to the Constitution”). Likewise, the Court refuses to reexamine its jurisprudence about the Privileges or Immunities Clause, thereby relegating a “‘clause in the constitution’” “‘to be without effect.’” *McDonald*, *supra*, at 813 (quoting *Marbury*, 1 Cranch, at 174); see *Timbs v. Indiana*, 586 U. S. 146, 157–159 (2019) (THOMAS, J., concurring in judgment) (criticizing the Court’s incorporation doctrine through a clause that

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addresses procedures). No subjective balancing test can justify such a wholesale disregard of the People's individual rights protected by the Fourteenth Amendment.

* * *

Our judicial duty to interpret the law requires adherence to the original meaning of the text. For that reason, we should not invoke *stare decisis* to uphold precedents that are demonstrably erroneous. Because petitioner and the dissenting opinions have not shown that the Court's dual-sovereignty doctrine is incorrect, much less demonstrably erroneous, I concur in the majority's opinion.

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Terance Martez Gamble pleaded guilty in Alabama state court to both possession of a firearm by a person convicted of "a crime of violence" and drug possession, and was sentenced to ten years' imprisonment, all but one year suspended. Apparently regarding Alabama's sentence as too lenient, federal prosecutors pursued a parallel charge, possession of a firearm by a convicted felon, in violation of federal law. Gamble again pleaded guilty and received nearly three more years in prison.

Had either the Federal Government or Alabama brought the successive prosecutions, the second would have violated Gamble's right not to be "twice put in jeopardy . . . for the same offence." U. S. Const., Amdt. 5, cl. 2. Yet the Federal Government was able to multiply Gamble's time in prison because of the doctrine that, for double jeopardy purposes, identical criminal laws enacted by "separate sovereigns" are different "offence[s]."

I dissent from the Court's adherence to that misguided doctrine. Instead of "fritter[ing] away [Gamble's] libert[y] upon a metaphysical subtlety, two sovereignties," Grant, *The Lanza Rule of Successive Prosecutions*, 32 Colum. L. Rev.

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1309, 1331 (1932), I would hold that the Double Jeopardy Clause bars “successive prosecutions [for the same offense] by parts of the whole USA.” *Puerto Rico v. Sánchez Valle*, 579 U. S. 59, 79 (2016) (GINSBURG, J., concurring).

I

A

Gamble urges that the Double Jeopardy Clause incorporates English common law. That law, he maintains, recognized a foreign acquittal or conviction as a bar to retrial in England for the same offense. See Brief for Petitioner 11–15. The Court, in turn, strives mightily to refute Gamble’s account of the common law. See *ante*, at 690–702. This case, however, does not call for an inquiry into whether and when an 18th-century English court would have credited a foreign court’s judgment in a criminal case. Gamble was convicted in both Alabama and the United States, jurisdictions that are not foreign to each other. English court decisions regarding the respect due to a foreign nation’s judgment are therefore inapposite.

B

In *United States v. Lanza*, 260 U. S. 377 (1922), this Court held that “an act denounced as a crime by both national and state sovereignties is an offense against the peace and dignity of both and may be punished by each.” *Id.*, at 382. Decades later, a sharply divided Court reaffirmed this separate-sovereigns doctrine. *Abbate v. United States*, 359 U. S. 187 (1959); *Bartkus v. Illinois*, 359 U. S. 121 (1959). I would not cling to those ill-advised decisions.

1

Justification for the separate-sovereigns doctrine centers on the word “offence”: An “offence,” the argument runs, is the violation of a sovereign’s law, the United States and each State are separate sovereigns, ergo successive state and fed-

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eral prosecutions do not place a defendant in “jeopardy . . . for the same offence.” *Ante*, at 681, 683–684 (internal quotation marks omitted).

This “compact syllogism” is fatally flawed. See Braun, *Praying to False Sovereigns: The Rule Permitting Successive Prosecutions in the Age of Cooperative Federalism*, 20 *Am. J. Crim. L.* 1, 25 (1992). The United States and its constituent States, unlike foreign nations, are “kindred systems,” “parts of ONE WHOLE.” The Federalist No. 82, p. 493 (C. Rossiter ed. 1961) (A. Hamilton). They compose one people, bound by an overriding Federal Constitution. Within that “WHOLE,” the Federal and State Governments should be disabled from accomplishing together “what neither government [could] do alone—prosecute an ordinary citizen twice for the same offence.” Amar & Marcus, *Double Jeopardy Law After Rodney King*, 95 *Colum. L. Rev.* 1, 2 (1995).

The notion that the Federal Government and the States are separate sovereigns overlooks a basic tenet of our federal system. The doctrine treats *governments* as sovereign, with state power to prosecute carried over from years pre-dating the Constitution. See *Heath v. Alabama*, 474 U.S. 82, 89 (1985) (citing *Lanza*, 260 U.S., at 382). In the system established by the Federal Constitution, however, “ultimate sovereignty” resides in the *governed*. *Arizona State Legislature v. Arizona Independent Redistricting Comm’n*, 576 U.S. 787, 820 (2015); *Martin v. Hunter’s Lessee*, 1 Wheat. 304, 324–325 (1816); Braun, *supra*, at 26–30. Insofar as a crime offends the “peace and dignity” of a sovereign, *Lanza*, 260 U.S., at 382, that “sovereign” is the people, the “original fountain of all legitimate authority,” The Federalist No. 22, at 152 (A. Hamilton); see Note, *Double Prosecution by State and Federal Governments: Another Exercise in Federalism*, 80 *Harv. L. Rev.* 1538, 1542 (1967). States may be separate, but their populations are part of the people composing the United States.

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In our “compound republic,” the division of authority between the United States and the States was meant to operate as “a double security [for] the rights of the people.” The Federalist No. 51, at 323 (J. Madison); see *Bond v. United States*, 564 U. S. 211, 221 (2011). The separate-sovereigns doctrine, however, scarcely shores up people’s rights. Instead, it invokes federalism to withhold liberty. See *Bartkus*, 359 U. S., at 155–156 (Black, J., dissenting).¹

It is the doctrine’s premise that each government has—and must be allowed to vindicate—a distinct interest in enforcing its own criminal laws. That is a peculiar way to look at the Double Jeopardy Clause, which by its terms safeguards the “person” and restrains the government. See, e. g., *id.*, at 155; *United States v. All Assets of G. P. S. Automotive Corp.*, 66 F. 3d 483, 498 (CA2 1995) (Calabresi, J., concurring). The Double Jeopardy Clause embodies a principle, “deeply ingrained” in our system of justice,

“that the State with all its resources and power should not be allowed to make repeated attempts to convict an individual for an alleged offense, thereby subjecting him to embarrassment, expense and ordeal and compelling him to live in a continuing state of anxiety and insecurity, as well as enhancing the possibility that even though innocent he may be found guilty.” *Green v. United States*, 355 U. S. 184, 187–188 (1957).

“Looked at from the standpoint of the individual who is being prosecuted,” the liberty-denying potential of successive prosecutions, when Federal and State Governments prosecute in tandem, is the same as it is when either

¹The Court writes that federalism “advances individual liberty in many ways,” but does not always do so. *Ante*, at 690 (citing, for example, state prohibition of activities authorized by federal law). The analogy of the separate-sovereigns doctrine to dual regulation is inapt. The former erodes a constitutional safeguard against successive prosecutions, while the Constitution contains no guarantee against dual regulation.

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prosecutes twice. *Bartkus*, 359 U.S., at 155 (Black, J., dissenting).

2

I turn, next, to further justifications the Court has supplied for the separate-sovereigns doctrine. None should survive close inspection.

a

One rationale emphasizes that the Double Jeopardy Clause originally restrained only the Federal Government and did not bar successive state prosecutions. *Id.*, at 124; *Lanza*, 260 U.S., at 382; *Fox v. Ohio*, 5 How. 410, 434–435 (1847). Incorporation of the Clause as a restraint on action by the States, effected in *Benton v. Maryland*, 395 U.S. 784 (1969), has rendered this rationale obsolete.

b

Another justification is precedent. In adopting and reaffirming the separate-sovereigns doctrine, the Court relied on dicta from 19th-century opinions. See *Abbate*, 359 U.S., at 190–193; *Bartkus*, 359 U.S., at 129–132; *Lanza*, 260 U.S., at 382–384. The persuasive force of those opinions is diminished by their dubious reasoning. See *supra*, at 727–730. While drawing upon dicta from prior opinions, the Court gave short shrift to contrary authority. See Braun, *supra*, at 20–23.

First, the Framers of the Bill of Rights voted down an amendment that would have permitted the Federal Government to re prosecute a defendant initially tried by a State. 1 Annals of Cong. 753 (1789); J. Sigler, Double Jeopardy: The Development of a Legal and Social Policy 30–31 (1969). But cf. *ante*, at 684. Nevermind that this amendment failed; the Court has attributed to the Clause the very meaning the First Congress refrained from adopting.²

²The Court sees this history as poor evidence of congressional intent. See *ante*, at 684. On another day, the Court looked to the First Congress' rejection of proposed amendments as instructive. See *Cook v. Gralike*,

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Second, early American courts regarded with disfavor the prospect of successive prosecutions by the Federal and State Governments. In *Houston v. Moore*, 5 Wheat. 1 (1820), Justice Washington expressed concern that such prosecutions would be “very much like oppression, if not worse”; he noted that an acquittal or conviction by one sovereign “might be pleaded in bar of the prosecution before the other.” *Id.*, at 23, 31. The Court today follows *Bartkus* in distinguishing Justice Washington’s opinion as addressing only the “strange” situation in which a State has prosecuted an offense “against the United States.” *Ante*, at 705; see *Bartkus*, 359 U. S., at 130. The distinction is thin, given the encompassing language in Justice Washington’s opinion. Justice Story’s dissent, moreover, declared successive prosecutions for the same offense contrary to “the principles of the common law, and the genius of our free government.” *Houston*, 5 Wheat., at 72.

Most of the early state decisions cited by the parties regarded successive federal-state prosecutions as unacceptable. See *Bartkus*, 359 U. S., at 158–159 (Black, J., dissenting). Only one court roundly endorsed a separate-sovereigns theory. *Hendrick v. Commonwealth*, 32 Va. 707, 713 (1834). The Court reads the state-court opinions as “distin[guishing] between believing successive prosecutions by separate sovereigns unjust and holding them unlawful.” *Ante*, at 703. I would not read the Double Jeopardy Clause to tolerate “unjust” prosecutions and believe early American courts would have questioned the Court’s distinction. See *State v. Brown*, 2 N. C. 100, 101 (1794) (allowing successive prosecutions would be “against natural justice, and therefore I cannot believe it to be law”).

531 U. S. 510, 521 (2001). Moreover, a “compelling” principle of statutory interpretation is “the proposition that Congress does not intend *sub silentio* to enact statutory language that it has earlier discarded in favor of other language.” *INS v. Cardoza-Fonseca*, 480 U. S. 421, 442–443 (1987) (internal quotation marks omitted).

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c

Finally, the Court has reasoned that the separate-sovereigns doctrine is necessary to prevent either the Federal Government or a State from encroaching on the other's law enforcement prerogatives. Without this doctrine, the Court has observed, the Federal Government, by prosecuting first, could bar a State from pursuing more serious charges for the same offense, *Bartkus*, 359 U. S., at 137; and conversely, a State, by prosecuting first, could effectively nullify federal law, *Abbate*, 359 U. S., at 195. This concern envisions federal and state prosecutors working at cross purposes, but cooperation between authorities is the norm. See *Bartkus*, 359 U. S., at 123. And when federal-state tension exists, successive prosecutions for the federal and state offenses may escape double-jeopardy blockage under the test prescribed in *Blockburger v. United States*, 284 U. S. 299 (1932). Offenses are distinct, *Blockburger* held, if "each . . . requires proof of a fact which the other does not." *Id.*, at 304; see Amar, 95 Colum. L. Rev., at 45–46 (violation of federal civil rights law and state assault law are different offenses).

II

The separate-sovereigns doctrine, I acknowledge, has been embraced repeatedly by the Court. But "[s]tare decisis is not an inexorable command." *Payne v. Tennessee*, 501 U. S. 808, 828 (1991). Our adherence to precedent is weakest in cases "concerning procedural rules that implicate fundamental constitutional protections." *Alleyne v. United States*, 570 U. S. 99, 116, n. 5 (2013). Gamble's case fits that bill. I would lay the "separate-sovereigns" rationale to rest for the aforesaid reasons and those stated below.

A

First, *Benton v. Maryland*, 395 U. S. 784, which rendered the double jeopardy safeguard applicable to the States, left the separate-sovereigns doctrine the sort of "legal last-

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man-standing for which we sometimes depart from *stare decisis*.” *Kimble v. Marvel Entertainment, LLC*, 576 U. S. 446, 458 (2015). In adopting and cleaving to the doctrine, the Court stressed that originally, the Clause restrained only federal, not state, action. *E. g.*, *Bartkus*, 359 U. S., at 127; *Lanza*, 260 U. S., at 382; cf. *Abbate*, 359 U. S., at 190.

Before incorporation, the separate-sovereigns doctrine had a certain logic: Without a carve-out for successive prosecutions by separate sovereigns, the Double Jeopardy Clause would have barred the Federal Government from prosecuting a defendant previously tried by a State, but would not have prevented a State from prosecuting a defendant previously tried by the Federal Government. Incorporation changed this. Operative against the States since 1969, when the Court decided *Benton v. Maryland*, 395 U. S. 784, the double jeopardy proscription now applies to the Federal Government and the States alike. The remaining office of the separate-sovereigns doctrine, then, is to enable federal and state prosecutors, proceeding one after the other, to expose defendants to double jeopardy.

The separate-sovereigns doctrine’s persistence contrasts with the fate of analogous dual-sovereignty doctrines following application of the rights at issue to the States. Prior to incorporation of the Fourth Amendment as a restraint on state action, federal prosecutors were free to use evidence obtained illegally by state or local officers, then served up to federal officers on a “silver platter.” See *Elkins v. United States*, 364 U. S. 206, 208–214 (1960); *Weeks v. United States*, 232 U. S. 383, 398 (1914). Once the Fourth Amendment applied to the States, abandonment of this “silver platter doctrine” was impelled by “principles of logic” and the reality that, from the perspective of the victim of an unreasonable search and seizure, it mattered not at all “whether his constitutional right ha[d] been invaded by a federal agent or by a state officer.” *Elkins*, 364 U. S., at 208, 215. As observed by Justice Harlan, *Elkins*’ abandonment of a separate-

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sovereigns exception to the exclusionary rule was at odds with retention of the separate-sovereigns doctrine for double jeopardy purposes in *Abbate* and *Bartkus*. See 364 U.S., at 252.

Similarly, before incorporation of the Fifth Amendment privilege against self-incrimination, the Court held that the privilege did not prevent state authorities from compelling a defendant to provide testimony that could incriminate him or her in another jurisdiction. *Knapp v. Schweitzer*, 357 U.S. 371, 375–381 (1958). After application of the self-incrimination privilege to the States, the Court concluded that its prior position was incompatible with the “policies and purposes” of the privilege. *Murphy v. Waterfront Comm’n of N. Y. Harbor*, 378 U.S. 52, 55, 77 (1964). No longer, the Court held, could a witness “be whipsawed into incriminating himself under both state and federal law *even though the constitutional privilege against self-incrimination is applicable to each.*” *Id.*, at 55 (internal quotation marks omitted; emphasis added).

The Court regards incorporation as immaterial because application of the Double Jeopardy Clause to the States did not affect comprehension of the word “offence” to mean the violation of one sovereign’s law. *Ante*, at 707–709. But the Court attributed a separate-sovereigns meaning to “offence” at least in part because the Double Jeopardy Clause did not apply to the States. See *supra*, at 730. Incorporation of the Clause should prompt the Court to consider the protection against double jeopardy from the defendant’s perspective and to ask why each of two governments within the United States should be permitted to try a defendant once for the same offense when neither could try him or her twice.

B

The expansion of federal criminal law has exacerbated the problems created by the separate-sovereigns doctrine. Ill effects of the doctrine might once have been tempered by

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the limited overlap between federal and state criminal law. *All Assets of G. P. S. Automotive*, 66 F. 3d, at 498 (Calabresi, J., concurring). In the last half century, however, federal criminal law has been extended pervasively into areas once left to the States. Guerra, *The Myth of Dual Sovereignty: Multijurisdictional Drug Law Enforcement and Double Jeopardy*, 73 N. C. L. Rev. 1159, 1165–1192 (1995); Brief for Sen. Orrin Hatch as *Amicus Curiae* 8–14. This new “age of ‘co-operative federalism,’ [in which] the Federal and State Governments are waging a united front against many types of criminal activity,” *Murphy*, 378 U. S., at 55–56, provides new opportunities for federal and state prosecutors to “join together to take a second bite at the apple,” *All Assets of G. P. S. Automotive*, 66 F. 3d, at 498 (Calabresi, J., concurring).³ This situation might be less troublesome if successive prosecutions occurred only in “instances of peculiar enormity, or where the public safety demanded extraordinary rigor.” *Fox*, 5 How., at 435. The run-of-the-mill felon-in-possession charges Gamble encountered indicate that, in practice, successive prosecutions are not limited to exceptional circumstances.

C

Against all this, there is little to be said for keeping the separate-sovereigns doctrine. Gamble’s case “do[es] not implicate the reliance interests of private parties.” *Alleyne*, 570 U. S., at 119 (SOTOMAYOR, J., concurring). The closest thing to a reliance interest would be the interest Federal and State Governments have in avoiding avulsive changes that could complicate ongoing prosecutions. As the Court correctly explains, however, overruling the separate-sovereigns doctrine would not affect large numbers of cases. See *ante*,

³ *Bartkus v. Illinois*, 359 U. S. 121 (1959), left open the prospect that the double jeopardy ban might block a successive state prosecution that was merely “a sham and a cover for a federal prosecution.” *Id.*, at 123–124. The Courts of Appeals have read this potential exception narrowly. See, e. g., *United States v. Figueroa-Soto*, 938 F. 2d 1015, 1019 (CA9 1991).

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at 709–710. In prosecutions based on the same conduct, federal and state prosecutors will often charge offenses having different elements, charges that, under *Blockburger*, will not trigger double jeopardy protection. See Poulin, Double Jeopardy Protection From Successive Prosecution: A Proposed Approach, 92 Geo. L. J. 1183, 1244–1245 (2004); Brief for Criminal Defense Experts as *Amici Curiae* 5–11.⁴

Notably, the Federal Government has endeavored to reduce the incidence of “same offense” prosecutions. Under the *Petite* policy adopted by the Department of Justice,⁵ the Department will pursue a federal prosecution “based on substantially the same act(s) or transaction(s)” previously prosecuted in state court only if the first prosecution left a “substantial federal interest . . . demonstrably unvindicated” and a Department senior official authorizes the prosecution. Dept. of Justice, Justice Manual § 9–2.031(A) (rev. July 2009).

At oral argument, the Government estimated that it authorizes only “about a hundred” *Petite* prosecutions per year. Tr. of Oral Arg. 54. But see *id.*, at 65–66 (referring to the “few hundred successive prosecutions that [the Government] bring[s] each year”). Some of these prosecutions will not

⁴The Government implies there is tension between Gamble’s position and *Blockburger v. United States*, 284 U. S. 299 (1932). Brief for United States 18–20. But if courts can ascertain how laws enacted by different Congresses fare under *Blockburger*, they can do the same for laws enacted by Congress and a State, or by two States. But cf. Amar & Marcus, Double Jeopardy Law After Rodney King, 95 Colum. L. Rev. 1, 39 (1995) (“Because different legislatures often do not work from the same linguistic building blocks, they will not use uniform language to describe an offence, even when each is indeed outlawing the same crime with the same elements.”).

⁵Formally the “Dual and Successive Prosecution Policy,” the policy is popularly known by the name of the case in which this Court first took note of it, *Petite v. United States*, 361 U. S. 529 (1960) (*per curiam*). The policy was adopted “in direct response to” *Bartkus* and *Abbate v. United States*, 359 U. S. 187 (1959). *Rinaldi v. United States*, 434 U. S. 22, 28 (1977) (*per curiam*).

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implicate double jeopardy, as the *Petite* policy uses a same-conduct test that is broader than the *Blockburger* same-elements test. And more than half the States forbid successive prosecutions for all or some offenses previously resolved on the merits by a federal or state court. Brief for Criminal Defense Experts as *Amici Curiae* 4–5, and n. 2 (collecting statutes); Brief for State of Texas et al. as *Amici Curiae* 28–30, and nn. 6–15 (same). In short, it is safe to predict that eliminating the separate-sovereigns doctrine would spark no large disruption in practice.

* * *

The separate-sovereigns doctrine, especially since *Bartkus* and *Abbate*, has been subject to relentless criticism by members of the bench, bar, and academy. Nevertheless, the Court reaffirms the doctrine, thereby diminishing the individual rights shielded by the Double Jeopardy Clause. Different parts of the “WHOLE” United States should not be positioned to prosecute a defendant a second time for the same offense. I would reverse Gamble’s federal conviction.

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A free society does not allow its government to try the same individual for the same crime until it’s happy with the result. Unfortunately, the Court today endorses a colossal exception to this ancient rule against double jeopardy. My colleagues say that the federal government and each State are “separate sovereigns” entitled to try the same person for the same crime. So if all the might of one “sovereign” cannot succeed against the presumptively free individual, another may insist on the chance to try again. And if both manage to succeed, so much the better; they can add one punishment on top of the other. But this “separate sovereigns exception” to the bar against double jeopardy finds no meaningful support in the text of the Constitution, its original public meaning, structure, or history. Instead, the Con-

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stitution promises all Americans that they will never suffer double jeopardy. I would enforce that guarantee.

I

“Fear and abhorrence of governmental power to try people twice for the same conduct is one of the oldest ideas found in western civilization.”¹ Throughout history, people have worried about the vast disparity of power between governments and individuals, the capacity of the state to bring charges repeatedly until it wins the result it wants, and what little would be left of human liberty if that power remained unchecked. To address the problem, the law in ancient Athens held that “[a] man could not be tried twice for the same offense.”² The Roman Republic and Empire incorporated a form of double jeopardy protection in their laws.³ The Old Testament and later church teachings endorsed the bar against double jeopardy too.⁴ And from the earliest days of the common law, courts recognized that to “punish a man twice over for one offence” would be deeply unjust.⁵

The rule against double jeopardy was firmly entrenched in both the American Colonies and England at the time of our Revolution.⁶ And the Fifth Amendment, which prohibits placing a defendant “twice . . . in jeopardy of life or limb”

¹ *Bartkus v. Illinois*, 359 U. S. 121, 151 (1959) (Black, J., dissenting).

² R. Bonner, *Lawyers and Litigants in Ancient Athens* 195 (1927).

³ J. Sigler, *Double Jeopardy: The Development of a Legal and Social Policy* 2–3 (1969); *Digest of Justinian: Digest 48.2.7.2*, translated in 11 S. Scott, *The Civil Law* 17 (1932).

⁴ See *Bartkus*, 359 U. S., at 152, n. 4 (Black, J., dissenting); Z. Brooke, *The English Church and the Papacy* 204–205, n. 1 (1931).

⁵ 1 F. Pollock & F. Maitland, *The History of English Law* 448 (2d ed. 1898).

⁶ See, e. g., *The Body of Liberties of 1641*, cl. 42, in *The Colonial Laws of Massachusetts* 42–43 (W. Whitmore ed. 1889); 4 W. Blackstone, *Commentaries on the Laws of England* 335–336 (5th ed. 1773) (Blackstone, *Commentaries*); 2 W. Hawkins, *Pleas of the Crown* 368 (1762) (Hawkins).

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for “the same offence” sought to carry the traditional common law rule into our Constitution.⁷ As Joseph Story put it, the Constitution’s prohibition against double jeopardy grew from a “great privilege secured by the common law” and meant “that a party shall not be tried a second time for the same offence, after he has once been convicted, or acquitted of the offence charged, by the verdict of a jury, and judgment has passed thereon for or against him.”⁸

Given all this, it might seem that Mr. Gamble should win this case handily. Alabama prosecuted him for violating a state law that “prohibits a convicted felon from possessing a pistol” and sentenced him to a year in prison.⁹ But then the federal government, apparently displeased with the sentence, charged Mr. Gamble under 18 U. S. C. § 922(g)(1) with being a felon in possession of a firearm based on the same facts that gave rise to the state prosecution. Ultimately, a federal court sentenced him to 46 months in prison and three years of supervised release. Most any ordinary speaker of English would say that Mr. Gamble was tried twice for “the same offence,” precisely what the Fifth Amendment prohibits. Tellingly, no one before us doubts that if either the federal government or Alabama had prosecuted Mr. Gamble twice on these facts and in this manner, it surely would have violated the Constitution.

So how does the government manage to evade the Fifth Amendment’s seemingly plain command? On the government’s account, the fact that federal and state authorities split up the prosecutions makes all the difference. Though the Double Jeopardy Clause doesn’t say anything about

⁷ *Ex parte Lange*, 18 Wall. 163, 170 (1874). See also *Benton v. Maryland*, 395 U. S. 784, 795–796 (1969); F. Wharton, *Criminal Law* 147 (1846).

⁸ 3 J. Story, *Commentaries on the Constitution of the United States* § 1781, p. 659 (1833).

⁹ *Ex parte Taylor*, 636 So. 2d 1246 (Ala. 1993); see Ala. Code §§ 13A–11–70(2), 13A–11–72(a) (2015).

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allowing “separate sovereigns” to do sequentially what neither may do separately, the government assures us the Fifth Amendment’s phrase “same offence” does this work. Adopting the government’s argument, the Court supplies the following syllogism: “[A]n ‘offence’ is defined by a law, and each law is defined by a sovereign. So where there are two sovereigns, there are two laws, and two ‘offences.’” *Ante*, at 683.

But the major premise of this argument—that “where there are two laws there are ‘two offenses’”—is mistaken. We know that the Constitution is not so easily evaded and that two statutes *can* punish the same offense.¹⁰ The framers understood the term “offence” to mean a “transgression.”¹¹ And they understood that the same transgression might be punished by two pieces of positive law: After all, constitutional protections were not meant to be flimsy things but to embody “principles that are permanent, uniform, and universal.”¹² As this Court explained long ago in *Blockburger v. United States*, “where the same act or transaction constitutes a violation of two distinct statutory provisions, the test to be applied to determine whether there are two offenses or only one, is whether each provision requires proof of a fact which the other does not.”¹³ So if two laws demand proof of the same facts to secure a conviction, they constitute a single offense under our Constitution and a second trial is forbidden. And by everyone’s admission, that is exactly what we have here: The statute under which the federal government proceeded required it to prove no facts beyond those Alabama needed to prove under state law to win its conviction; the two prosecutions *were* for the same offense.

¹⁰ *Whalen v. United States*, 445 U. S. 684, 691–692 (1980).

¹¹ *Dictionarium Britannicum* (N. Bailey ed. 1730); see also N. Webster, *An American Dictionary of the English Language* (1828) (defining an “offense” as including “[a]ny transgression of law, divine or human”).

¹² 4 Blackstone, *Commentaries* 3.

¹³ 284 U. S. 299, 304 (1932).

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That leaves the government and the Court to rest on the fact that distinct governmental entities, federal and state, enacted these identical laws. This, we are told, is enough to transform what everyone agrees would otherwise be the same offense into two different offenses. But where is *that* distinction to be found in the Constitution's text or original public understanding? We know that the framers didn't conceive of the term "same offence" in some technical way as referring only to the same statute. And if double jeopardy prevents *one* government from prosecuting a defendant multiple times for the same offense under the banner of separate statutory labels, on what account can it make a difference when *many* governments collectively seek to do the same thing?

The government identifies no evidence suggesting that the framers understood the term "same offence" to bear such a lawyerly sovereign-specific meaning. Meanwhile, Blackstone's Commentaries explained how "Roman law," "Athens," "the Jewish republic," and "English Law" addressed the singular "offence of homicide," and how the Roman, Gothic, and ancient Saxon law approached the singular "offence of arson."¹⁴ Other treatises of the period contain similar taxonomies of "offences" that are not sovereign specific.¹⁵ Members of the Continental Congress, too, used the word "offence" in this same way. In 1786, a congressional committee endorsed federal control over import duties because otherwise "thirteen separate authorities" might "ordain various penalties for the same offence."¹⁶ In 1778, the Continental Congress passed a resolution declaring that a person should not be tried in state court "for the same offense, for which he had previous thereto been tried by a Court Mar-

¹⁴ 4 Blackstone, Commentaries 176–187, 222.

¹⁵ See, e. g., 2 J. Bishop, Commentaries on the Criminal Law §§ 90–120 (5th ed. 1872) (discussing the singular offense of "burglary" by reference to the "common law," English law, and the laws of multiple States).

¹⁶ 30 Journals of the Continental Congress 440 (J. Fitzpatrick ed. 1934).

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tial.”¹⁷ And in 1785, the Continental Congress considered an ordinance declaring that a defendant could “plead a formal Acquittal on a Trial” in a maritime court “for the same supposed Offences, in a similar Court in one of the other United States.”¹⁸ In all of these examples, early legislators—including many of the same people who would vote to add the Fifth Amendment to the Bill of Rights just a few years later—recognized that transgressions of state and federal law could constitute the “same offence.”

The history of the Double Jeopardy Clause itself supplies more evidence yet. The original draft prohibited “‘more than one trial or one punishment for the same offence.’”¹⁹ One representative then proposed adding the words “‘by any law of the United States’” after “‘same offence.’”²⁰ That proposal clearly would have codified the government’s sovereign-specific view of the Clause’s operation. Yet, Congress proceeded to reject it.

Viewed from the perspective of an ordinary reader of the Fifth Amendment, whether at the time of its adoption or in our own time, none of this can come as a surprise. Imagine trying to explain the Court’s separate sovereigns rule to a criminal defendant, then or now. Yes, you were sentenced to state prison for being a felon in possession of a firearm. And don’t worry—the State can’t prosecute you again. But a federal prosecutor *can* send you to prison again for exactly the same thing. What’s more, that federal prosecutor may work hand in hand with the same state prosecutor who already went after you. They can share evidence and discuss what worked and what didn’t the first time around. And the federal prosecutor can pursue you even if you were *acquitted* in the state case. None of that offends the Constitution’s plain words protecting a person from being placed

¹⁷ 10 *id.*, at 72 (W. Ford ed. 1908).

¹⁸ 29 *id.*, at 803 (J. Fitzpatrick ed. 1933).

¹⁹ 1 *Annals of Cong.* 753 (1789).

²⁰ *Ibid.*

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“twice . . . in jeopardy of life or limb” for “the same offence.” Really?

II

Without meaningful support in the text of the Double Jeopardy Clause, the government insists that the separate sovereigns exception is at least compelled by the structure of our Constitution. On its view, adopted by the Court today, allowing the federal and state governments to punish the same defendant for the same conduct “honors the substantive differences between the interests that two sovereigns can have” in our federal system. *Ante*, at 685.

But this argument errs from the outset. The Court seems to assume that sovereignty in this country belongs to the state and federal governments, much as it once belonged to the King of England. But as Chief Justice Marshall explained, “[t]he government of the Union . . . is emphatically, and truly, a government of the people,” and all sovereignty “emanates from them.”²¹ Alexander Hamilton put the point this way: “[T]he national and State systems are to be regarded” not as different sovereigns foreign to one another but “as ONE WHOLE.”²² Under our Constitution, the federal and state governments are but two expressions of a single and sovereign people.

This principle resonates throughout our history and law. State courts that refused to entertain federal causes of action found little sympathy when attempting the very separate sovereigns theory underlying today’s decision.²³ In time, too, it became clear that federal courts may decide state-law issues, and state courts may decide federal questions.²⁴ Even in the criminal context, this Court has upheld removal of some state criminal actions to federal court.²⁵

²¹ *McCulloch v. Maryland*, 4 Wheat. 316, 404–405 (1819).

²² The Federalist No. 82, p. 494 (C. Rossiter ed. 1961).

²³ See *Testa v. Katt*, 330 U. S. 386 (1947).

²⁴ *Clafin v. Houseman*, 93 U. S. 130 (1876).

²⁵ See *Tennessee v. Davis*, 100 U. S. 257 (1880).